

(34)

Tentative Ruling

Re: **Corral v. Webull Financial**
Superior Court Case No. 24CECG01122

Hearing Date: August 11, 2026 (Dept. 502)

Motion: by Defendant for Judgment on the Pleadings

Tentative Ruling:

To grant the motion for judgment on the pleadings, without leave to amend. (Code Civ. Proc. § 438.) The prevailing party is directed to submit to this court, within 7 days of service of the minute order, a proposed judgment dismissing the action.

Oral argument on this matter is continued to September 17, 2026, at 3:30 in Dept. 502 so that the plaintiff may be present for oral argument via Zoom.

Explanation:

Plaintiff Michael Corral filed the Second Amended complaint on December 9, 2025³ using a Judicial Council form complaint. In paragraph 10 plaintiff indicates that he alleges a single "Other" cause of action for "Failure to transfer 1,000,000 from Webull Financial Bank to Wells Fargo Bank"

Use of the Judicial Council form complaint requires the use of attachments for alleging the causes of action. Paragraph 10 of the form pleading states, "[t]he following causes of action are attached and the statements above apply to each **(each complaint must have one or more causes of action attached)**: ..." (Emphasis added.) The plaintiff is to check the boxes indicating the causes of action being alleged (or specify others in the "other" section), and add to the form complaint attachments alleging the elements and facts pertinent to each cause of action. Having failed to include any cause of action attachments, the complaint fails to state facts sufficient to state any cause of action.

The Amended Complaint includes handwritten allegations making reference to attached exhibits to prior pleadings and alleging a bank manager was served with a subpoena duces tecum for banks statements with "verified mirco (b) deposits verifying 1,000,000 Being transferred From verified Webull Financial Bank Account and verified \$100,000 line of credit." (SAC, ¶ 9.a.)

The court is not inclined to refer to prior pleadings in allowing a plaintiff to state a cause of action. "'It is well established that an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading.'" (*Foreman & Clark*

³ Counsel for defendant, Alexis King attests to not having been served with the Second Amended Complaint that is the subject of this motion. (King Decl., ¶ 11.) Plaintiff must serve any amended pleadings on all parties having appeared in the action.

Corp. v. Fallon (1971) 3 Cal.3d 875, 884, citations omitted.) However, as was discussed in the court's ruling on defendant's prior motion for judgment on the pleadings, the exhibits attached fail to support the existence of a cause of action. The exhibits attached to the prior Amended Complaint appear to be pages from a notary register. Plaintiffs may attach a copy of a document to the complaint and incorporate it by reference. By so doing, the documents become part of the complaint as if set forth verbatim therein. Thus, the contents of the exhibit may supply the ultimate facts required to state the cause of action. (*Del Mar Beach Club Owners Assn., Inc. v. Imperial Contracting Co., Inc.* (1981) 123 Cal.App.3d 898, 908.) Although there are documents attached to the Amended Complaint, none of them are incorporated by reference. In any case, none of the documents include facts that would constitute a cause of action for "failure to transfer."

The cause of action for "failure to transfer" is uncertain as to what is alleged to constitute this cause of action. The Second Amended Complaint states the conclusion that Webull Financial failed to make a transfer of funds but alleges neither the basis for any duty to do so nor a violation of a contract for the transfer. It is unclear whether the cause of action is based on a contractual relationship based on plaintiff being a customer of defendant or a second cause of action based in negligence.

Accordingly, the motion for judgment on the pleadings is granted.

"If the plaintiff has not had an opportunity to amend the complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment." (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.) "The burden is on the plaintiff, however, to demonstrate the manner in which the complaint might be amended." (*Hendy v. Losse* (1991) 54 Cal.3d 723, 742; see also *McClintock v. West*, *supra*, 219 Cal.App.4th at p. 556 [demurrer properly sustained without leave to amend where plaintiff did not argue that leave to amend was warranted].)

Here, plaintiff has had the opportunity to amend the complaint to plead a cause of action and the defects present in the previous pleadings remain. As a result, the court will not grant leave to amend.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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Issued By: Img **on** 8-10-26.
(Judge's initials) (Date)